

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MOBILE MANOR LIMITED,
LLLP d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

vs.

Case No. 2015-CC-001274

MARLIN J. YODER a/k/a MARLIN JAY
YODER and ANY UNKNOWN TENANT(s),
Defendants.

**PLAINTIFF'S RESPONSE
TO
DEFENDANT'S MOTION TO COMPEL DISCOVERY
AND
AWARD OF ATTORNEY'S FEES AND COSTS**

COMES NOW, the Plaintiff, by and through the undersigned counsel, and responds to the Motion to Compel Production and Award of Attorneys Fees and Costs, and alleges:

1. Plaintiff produced to Defendant all photographs and documents in its possession in regard to the above-styled cause in the Office of Vincent M. Lucente & Associates, Inc. on August 26, 2015 at between 2:15 p.m. and 3:00 p.m.. The original appointment was for 2:00 p.m., and counsel for Defendant had run late. Counsel for Defendant evidently also had another appointment scheduled, and as a result, he looked at the documents supplied by the Plaintiff, and asked counsel for the Plaintiff to make copies and provide them.

2. At that time, defense counsel requested that copies be made, although the reason for scheduling the production at the Office of Lucente & Associates was so that the Defendant could

make all the copies that were wanted at that time and at that place.

3. Equally, at that time and at that place, counsel for the Defendant did not object to the documents that were supplied or their alleged inadequacy.

4. The reason that the Plaintiff did not supply the documents earlier was because the Plaintiff changed ownership on or about July 17, 2015. Counsel for the Plaintiff and Defendant both became informed of same, and the issue of whether the Defendant would come to be in compliance with Plaintiff's rules and regulations, and whether the Plaintiff would relent in its decision to carry on the eviction, was up in the air.

5. When it became clear that the parties were not able to resolve their differences amicably, the Plaintiff and Defendant's counsels agreed to the date and time of supplying documents to the Defendant, that is, August 26, 2015.

6. On October 9, 2015, Plaintiff sent to Defendant an electronic record of all documents in its possession at that time pertinent to Plaintiff's complaint or Defendant's claimed affirmative defenses.

7. Prior to the filing of the instant motion by the Defendant, Plaintiff served upon the Defendant all documents referred to in the foregoing paragraph received by Defendant on October 13, 2015. A true copy of the tracking document and return receipt are incorporated into this Response as Exhibit B.

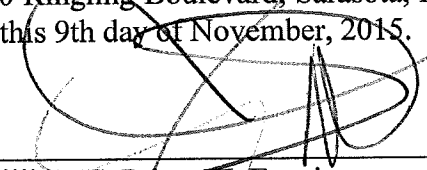
8. Subsequent to the production of documents supplied by the Plaintiff to the Defendant, the Plaintiff has procured a video of the park, intended to be used in evidence in the trial of the above styled cause, and photographs of the condition of Lot 129, evidencing other rule violations, for which the Plaintiff's former and current owners sought enforcement. The video and photographs are

available to be produced, in electronic form, for viewing, and copies may be obtained from Premier Video, 1511 57th Avenue West, Bradenton, Florida 34207.

9. Moreover, the Plaintiff promulgated interrogatories and a Request to Produce to the Defendant, who, except for affirming his residence, supplied nothing in response to either the interrogatories or to the request for production. Unlike the Plaintiff, who has worked in good faith to comply with Defendant's requests, the Defendant has supplied nothing to the Plaintiff, and can hardly seek attorney fees when the Defendant is himself obstructive and not in compliance with reasonable requests.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Plaintiff's Response to Defendant's Motion to Compel Discovery and Award of Attorney's Fees and Costs has been furnished in accordance with Florida Rule of Judicial Administration 2.515 to DEREK W. EISEMANN, ESQUIRE, Syrett, Meshad, Resnick, et al, 1900 Ringling Boulevard, Sarasota, Florida, 34236 at deisemann@smrl.com and mfelton@smrl.com this 9th day of November, 2015.



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